

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
GRETCHEN SOTO ORTIZ, as Administrator
of the Estate of ERIC DANIEL DUPREY SOTO A/K/A
ERIC D. DUPREY SOTO, Deceased, AND AS GUARDIAN
OF THE PROPERTY FOR E [REDACTED] D [REDACTED] D [REDACTED]
V [REDACTED] and E [REDACTED] M [REDACTED] D [REDACTED] V [REDACTED]
INFANTS UNDER THE AGE OF 14 YEARS OLD and
L [REDACTED] L [REDACTED] D [REDACTED] N [REDACTED] AN INFANT UNDER
THE AGE OF 14 YEARS OLD BY HER MOTHER AND
NATURAL GUARDIAN JAMYL NIEVES MELENDEZ,
Plaintiffs,

Index No.:

SUMMONSPlaintiff designates Bronx
County as the place of trial.The basis of venue is the
County where the cause of
action arose.

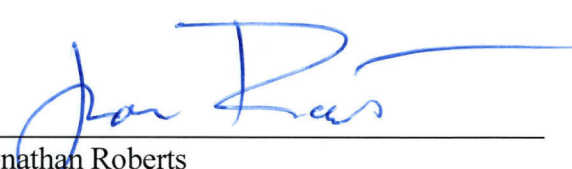
-against-

THE CITY OF NEW YORK and THE NEW YORK
CITY POLICE DEPARTMENT and SARGEANT ERIK
DURAN TAX ID # 948476
Defendants.

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To the above-named Defendant(s)

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, of if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 12, 2024


Jonathan Roberts
Talkin Muccigrosso & Roberts LLP
Attorneys for Plaintiffs
40 Exchange Place Suite 1800
New York, New York 10005
212-482-0007

TO: The City of New York
100 Church Street
New York, NY 10007

The New York City Police Department
New York City Police Officer Sergeant Erik Duran Tax
No# 948476
One Police Plaza
New York, New York 10038

Erik Duran
164 Agor Lane
Mahopac, New York 10541

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

GRETCHEN SOTO ORTIZ, as Administrator
of the Estate of ERIC DANIEL DUPREY SOTO A/K/A
ERIC D. DUPREY SOTO, Deceased, AND AS GUARDIAN
OF THE PROPERTY FOR E [REDACTED] D [REDACTED] D [REDACTED]
V [REDACTED] and E [REDACTED] M [REDACTED] A D [REDACTED] V [REDACTED]
INFANTS UNDER THE AGE OF 14 YEARS OLD and
L [REDACTED] L [REDACTED] D [REDACTED] N [REDACTED] AN INFANT UNDER
THE AGE OF 14 YEARS OLD BY HER MOTHER AND
NATURAL GUARDIAN JAMYL NIEVES MELENDEZ,

VERIFIED COMPLAINT

Index No.:

Plaintiffs,

-against-

THE CITY OF NEW YORK AND THE NEW YORK
CITY POLICE DEPARTMENT AND NEW YORK CITY
POLICE OFFICER SERGEANT ERIK DURAN TAX ID
948476,

Defendants.

-----X

Plaintiffs, by their attorneys, Talkin, Muccigrosso & Roberts, LLP, complaining of the
Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and
POLICE OFFICER SERGEANT ERIK DURAN TAX ID # 948476 respectfully alleges upon
information and belief as follows:

NOTICE OF CLAIM

1. On September 12, 2023, Plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.
2. That a statutory 50-h hearing was held on November 2, 2023.
3. That the Plaintiff has complied with all conditions precedent applicable to the instant action.

PARTIES

4. Plaintiff, GRETCHEN SOTO ORTIZ, was and still is a resident of Okeechobee

County, in the State of Florida.

5. On August 12, 2024, plaintiff GRETCHEN SOTO ORTIZ was appointed Guardian of the Property for E■■■■ D■■■■ D■■■■ V■■■■ and E■■■■ M■■■■ D■■■■ V■■■■.

6. On November 8th, 2024, plaintiff GRETCHEN SOTO ORTIZ was appointed Administrator of the Estate of her son, ERIC DANIEL DUPREY SOTO a/k/a ERIC D. DUPREY SOTO.

7. At all times herein mentioned, the Infant Plaintiff L■■■■ L■■ D■■■■ N■■■■ (hereinafter, "Infant Plaintiff") a minor, and JAMYL NIEVES MELENDEZ mother and natural guardian (hereinafter, "MELENDEZ") were, and still are, residents of San Juan, Puerto Rico.

8. The City of New York (or "City") is a municipal corporation organized under the laws of the State of New York. At all times relevant, Defendant City, acting through the New York City Police Department (or "NYPD"), was responsible for the policy, practice, supervision, discipline, retention, implementation and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obey the laws of the United States and the State of New York.

9. At all times herein mentioned Defendant, NEW YORK CITY POLICE OFFICER SARGEANT ERIK DURAN TAX ID # 948476, was an employee and/or agent of the New York City Police Department, a municipal agency of the City of New York. NEW YORK CITY POLICE OFFICER SARGEANT ERIK DURAN TAX ID # 948476 is sued in his official capacity.

10. At all times herein mentioned Defendant NYPD was acting under color of the state of the law, to wit, under color of statutes, ordinances, regulations, policies, customs and usages of the City of New York.

11. The claim arises from an incident that occurred on August 23, 2023, in which the decedent was riding a scooter when he was assaulted by New York City Police Officer SERGEANT ERIK DURAN, Tax Id #948476 with a large picnic cooler filled with ice and drinks causing him to lose control of the scooter resulting in his death.

FACTUAL ALLEGATIONS

12. On August 23, 2023, at approximately 5:28 p.m. decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, was lawfully present in the vicinity of 2505

Aqueduct Avenue between West 190th and West 192nd Streets, in the County of the Bronx, in the City and State of New York.

13. At the above time and place, the decedent was riding a scooter when he was assaulted by New York City Police Officer SERGEANT ERIK DURAN, Tax Id #948476 with a large picnic cooler filled with ice and drinks causing him to lose control of the scooter resulting in his death.

14. As a result of the forgoing, decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO sustained serious, severe, grievous and multiple injuries resulting in his death. Decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO was caused to sustain intense physical pain and suffering, severe mental shock, severe mental anguish and loss of life, decedent was acutely and consciously aware of his predicament prior to his demise and suffered pre-impact terror prior to his death.

15. The amount of damages sustained by plaintiffs exceeds jurisdictional limitations of all lower courts.

AS AND FOR A FIRST CAUSE OF ACTION

(U.S.C. § 1983)

16. The above paragraphs are herein incorporated by reference.

17. Defendants deprived decedent of his civil, constitutional and statutory rights under color of law and conspired to deprive him of such rights and are liable to decedent under 42 USC § 1983.

18. Defendants, under color of state law, subjected the Decedent to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- a. Freedom from unreasonable searches and seizures of his person;
- b. Freedom from arrest without probable cause;
- c. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which Plaintiff was aware and did not consent;

- d. Freedom from deprivation of liberty without due process of law;
- e. Freedom from excessive force.
- 19. Plaintiffs have been damaged as a result of Defendants' wrongful acts.
- 20. Defendants, acted in bad faith and without justification in committing the aforesaid deprivation of the decedent's constitutional rights.
- 21. In commencing and continuing said wrongful detainment, Defendants caused Decedent's death in violation of the Penal Laws of the State of New York and his constitutional rights.
- 22. Decedent had not given Defendants probable cause to believe that he had committed any illegal acts.
- 23. As a result of the foregoing, Plaintiffs demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

(MUNICIPAL AND SUPERVISORY LIABILITY- "MONELL")

- 24. The above paragraphs are herein incorporated by reference.
- 25. The City is liable for the damages suffered by Plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of Plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the intolerably frequent illegal arrests by its police officers, but has nevertheless exhibited deliberate indifference to such illegal arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.
- 26. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeat routine misconduct by the same officers, same units and same precincts. In 2012, New York City paid out over \$131 million for the fiscal year, compared to 2011, when it paid out more than \$166 million, and 2010, when it paid \$128 million.¹ In the first ten years of the 21st century, the City of New York has paid nearly a billion dollars on lawsuits brought

¹ Mayor Michael Bloomberg's preliminary Management Report for FY 2013, available at http://www.nyc.gov/html/ops/downloads/pdf/pmmr2013/2013_pmmr.pdf, see page 6, last visited on June 25, 2013.

against the NYPD.² More than 40% of those settlements in 2011 stem from excessive force and false arrest.

27. The widely held assumption is that civil rights lawsuits deter police misconduct. “The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails. Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v. Phipps, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

28. However, the City of New York has insulated NYPD officers from accountability for its civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers. This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability. The City Council, Government Operations Committee, despite being alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately

² “NYPD Has Paid Out Nearly \$1 Billion in Claims Over Past Decade,” by Associated Press Writers Colleen Long and Jennifer Peltz, <http://www.law.com/jsp/article.jsp?id=1202473432953>, October 15, 2010 last visited on June 25, 2013.

responsible for New York City civil rights lawsuits.

29. The City is liable for the damages suffered by Plaintiffs in that, after learning of their employees' violation of Plaintiffs' constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event.

30. The aforesaid event underlying Plaintiffs' factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

31. The City has been alerted to the regular use of false arrests by its police officers, through lawsuits, civilian complaints, notices of claim, City Council hearings, newspaper reports, and cases resulting in declined prosecutions and dismissals, but has nevertheless exhibited deliberate indifference to such false arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.

32. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, towards individual officers repeatedly named in lawsuits, towards incidents repeatedly occurring in the same precinct, towards patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against Plaintiff.

33. Police officers have repeatedly told New York City news investigations that their supervisors pressure them into reaching "performance goals" or quotas, resulting in the violation of innocent New Yorker's civil rights.³ Former Deputy Commissioner Paul J. Browne has repeatedly

³ See WABC's Jim Hoffer's three installments (March 3, May 23 and May 25, 2010) on NYPD quotas available at <http://abclocal.go.com/wabc/story?section=news/investigators&id=7461355> last visited on June 25, 2013.

admitted that NYPD commanders are permitted to set “productivity goals.”⁴ NYPD Officer Adil Polanco has asserted that his command, the 41st precinct in the Bronx, regularly requires officers to make at least “one arrest and twenty summonses” per month.⁵ The New York City Office of Collective Bargaining concluded that officers in Brooklyn’s 75th Precinct were required to issue four parking tickets, three moving violation citations, three “quality-of-life” summonses, make one arrest and two stop-and-frisks each month.⁶ Arbitrator Bonnie Siber Weinstock ruled that the NYPD maintained an illegal quota system, and she ordered the city to cease and desist from the practice.⁷

34. Kieran Creighton, commander of the NYPD Housing Police Service Area 8 in the north Bronx, was investigated in 2007 for ordering officers to make a certain number of arrests each month. According to the New York Daily News:

“The incident allegedly occurred in the spring when Creighton ordered at least eight members of an undercover anti-crime team to a meeting in Pelham Bay Park to berate them about an alleged lack of arrests, sources said.

‘You can’t make the nine collars a month, then we’ll all have to go our separate ways,’ Creighton told the officers, according to an internal complaint obtained by The News. Anything less than nine arrests would be a ‘personal slap in the face,’ Creighton allegedly said. Creighton then told the cops to ‘finagle’ the times of arrests so any overtime was paid for by a federal funded anti-drug program, the complaint alleges.

Unbeknownst to Creighton, one officer had his NYPD radio switched on – so that captain’s 10 to 12-minute speech was broadcast to Bronx precincts in Morrisania and Shuylerville and taped by a 911 dispatcher.”⁸

35. The Civilian Complaint Review Board (“the CCRB”), a City police oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results

⁴ Jim Hoffer, *NYPD Officer Claims Pressure to Make Arrests*, WABC-TV Eyewitness News, March 2, 2010. Available at <http://abc7ny.com/archive/7305356/>. (“Police Officers like others who receive compensation are provided productivity goals and they are expected to work.”)

⁵ See *id.*

⁶ *New York City Ticket Quota Confirmed, Denied*. TheNewspaper.com, Jan. 21, 2006, available at <http://www.thenewspaper.com/news/09/914.asp>.

⁷ See *id.*

⁸ Alison Gendar, *NYPD Captain Allegedly Caught in Arrest Quota Fixing*. The New York Daily News, Nov. 14, 2017. Available at <http://www.nydailynews.com/news/crime/nypd-captain-allegedly-caught-arrest-quota-fixing-article-1.256006>.

in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

36. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints who received no discipline was 47%; in 2007, it was 75%.⁹ The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provides so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

37. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge

⁹ The NYCLU issued a report in September 2007 on the CCRB detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct: "Mission Failure: Civilian Review of Policing in New York City, 1994-2006", available at: http://www.nyclu.org/files/ccrb_failing_report_090507.pdf, last visited on June 25, 2013.

of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.” See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.)(Weinstein, J.).

38. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate Plaintiffs’ civil rights, without fear of reprisal.

39. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

40. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

41. The above paragraphs are herein incorporated by reference.

42. Defendants’ conduct toward decedent was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.

43. Defendants acted with desire to cause decedent emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such distress to said decedent.

44. Defendants acted with utter disregard of the consequences of their actions.

45. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community, sustain intense physical pain and suffering, severe mental shock, severe mental anguish and loss of life, decedent was acutely and consciously aware of his predicament prior to his demise and pre-impact terror prior to his death.

46. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

(ASSAULT AND BATTERY)

47. The above paragraphs are herein incorporated by reference.

48. That on August 23, 2023 at approximately 5:28 p.m. while the decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO was lawfully present in the vicinity of 2505 Aqueduct Avenue between West 190th and West 192nd Streets, in the County of the Bronx, in the City and State of New York and riding a scooter, he was assaulted by New York City Police Officer SERGEANT ERIK DURAN, Tax Id #948476 with a large picnic cooler filled with ice and drinks causing him to lose control of the scooter resulting in his death.

49. Said assault was without warrant, probable cause and/or justification.

50. At all relevant times, Defendants caused ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO to fear for his physical well being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

51. Defendants engaged in and subjected ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO to immediate harmful or offensive touching and battered him without his consent or justification.

52. Due to the intentional, willful and unlawful acts of Defendants, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO suffered damages.

53. By reason of the negligent actions and statutory violations of the defendants and their agents, decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO sustained serious, severe, grievous and multiple injuries resulting in his death. Decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO was caused to sustain intense physical pain and suffering, severe mental shock, severe mental anguish and loss of life, decedent was acutely and consciously aware of his predicament prior to his demise and suffered pre-impact terror prior to his death.

54. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK AND
THE NEW YORK CITY POLICE DEPARTMENT
(NEGLIGENT HIRING, TRAINING, SUPERVISION AND RETENTION)

55. The above paragraphs are herein incorporated by reference.

56. Defendant, CITY, hired and retained in its employ police officers including but not limited to SERGEANT ERIK DURAN Tax No.: 948476, with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendants, and therefore were unfit to be police officers.

57. Defendant, CITY, hired and retained in its employ police officers including but not limited to SERGEANT ERIK DURAN Tax No.: 948476, with the knowledge that said police officers lacked deportment to be employed by the aforementioned Defendant, and therefore, were unfit to be police officers.

58. The supervisors and policy making officer of Defendant, CITY and its Police Department as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices including but not limited to SERGEANT ERIK DURAN Tax No.: 948476.

59. Defendant, CITY, has failed to properly and effectively train their employees, including but not limited to SERGEANT ERIK DURAN Tax No.: 948476 with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

60. Defendant, CITY, hired and retained in its employ certain police officers including but not limited to SERGEANT ERIK DURAN Tax No.: 948476, with knowledge that said officers had vicious propensities and were therefore unfit to be police officers.

61. As a result of the foregoing, decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO sustained serious, severe, grievous and multiple injuries resulting in his death. Decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO was caused to sustain intense physical pain and suffering, severe mental shock, severe mental anguish and loss of life, decedent was acutely and consciously aware of his predicament prior to his demise and pre-impact terror prior to his death.

62. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
(VIOLATION OF VICTIMS OF VIOLENT CRIME PROTECTION ACT UNDER NEW
YORK CITY LAW)

63. The above paragraphs are herein incorporated by reference.

64. Defendants' acts or series of acts constituted a misdemeanor or felony against ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, as defined in state of federal law which presented a serious risk of physical injury to ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, whether or not such acts actually resulted in criminal charges, prosecution or conviction.

65. Accordingly, Defendants committed a crime of violence against ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, and violated his rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

66. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS FOR THE SEVENTH CAUSE OF ACTION
(WRONGFUL DEATH)

67. The above paragraphs are herein incorporated by reference.

68. That on August 23, 2023 at approximately 5:28 p.m. while the decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO was lawfully present in the vicinity of 2505 Aqueduct Avenue between West 190th and West 192nd Streets, in the County of the Bronx, in the City and State of New York and riding a scooter, he was assaulted by New York City Police Officer SERGEANT ERIK DURAN, Tax Id #948476 with a large picnic cooler filled with ice and drinks causing him to lose control of the scooter resulting in his death.

69. That this assault of the decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO was without probable cause.

70. That the aforementioned assault was performed knowingly, intentionally and willfully.

71. That the aforementioned assault was performed negligently and recklessly.

72. That the aforementioned assault was performed without reason, provocation or justification.

73. That the aforementioned assault resulted in the death of ERIC DANIEL DUPREY

SOTO A/K/A ERIC D. DUPREY SOTO.

74. That at all times herein after mentioned defendant, New York City Police Officer SERGEANT ERIK DURAN, Tax Id #948476, engaged in the actions and conduct alleged herein in his official capacity as a New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

75. That such actions served to deprive ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and Sec. 1983 of 42 U.S.C. In particular, he was deprived of his right to due process of law, his right to happiness, to liberty, to be free from physical injury and the unwarranted use of physical force, and ultimately the most fundamental right – his right to life.

76. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, have as a matter of policy and practice and with deliberate indifference failed to adequately train, supervise, discipline, sanction or otherwise direct its' police officers, including the officers at the scene in this case, regarding the protection of the constitutional rights of citizens – and more importantly – failed to tear down the “Blue Wall of Silence” so as to force the disclosure of these constitutional abuses and to take corrective measures.

77. Such policy, practice and deliberate indifference have been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to encourage and sanction the police officer's unlawful conduct described above and was the proximate cause of the violations of the decedent ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO'S rights in the evening of August 23, 2023.

78. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR EIGHTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK AND
THE NEW YORK CITY POLICE DEPARTMENT
(RESPONDEAT SUPERIOR)

79. The above paragraphs are herein incorporated by reference.

80. Defendants' intentional tortious acts were undertaken within the scope of their employment by Defendants City of New York and The New York City Police Department and in furtherance of their respective interests.

81. As a result of Defendants' tortious conduct in the course of their employment and in

furtherance of the business of Defendant City of New York, Plaintiff was damaged.

82. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR THE NINTH CAUSE OF ACTION ON BEHALF OF E ■■■■ D ■■■■
D ■■■■ V ■■■■ INFANT UNDER 14 YEARS OLD (LOSS OF SERVICES)

83. The above paragraphs are herein incorporated by reference.

84. At all times herein after mentioned, E ■■■■ D ■■■■ D ■■■■ V ■■■■, was the son of the decedent, of ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, and resided with him and was entitled to his services, society, comfort and affection.

85. As a result of defendants' negligence, assault and battery, negligent training, hiring and retention, and violation of the decedent's constitutional rights resulting in the death of ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, E ■■■■ D ■■■■ D ■■■■ V ■■■■, has been deprived of the services, society and support of his father, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO.

86. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR THE TENTH CAUSE OF ACTION ON BEHALF OF E ■■■■
M ■■■■ D ■■■■ V ■■■■ INFANT UNDER 14 YEARS OLD (LOSS OF SERVICES)

87. The above paragraphs are herein incorporated by reference.

88. At all times herein after mentioned, E ■■■■ M ■■■■ D ■■■■ V ■■■■, was the DAUGHTER of the decedent, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, and resided with him and was entitled to his services, society, comfort and affection.

89. As a result of defendants' negligence, assault and battery, negligent training, hiring and retention, and violation of the decedent's constitutional rights resulting in the death of ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, E ■■■■ M ■■■■ D ■■■■ V ■■■■, has been deprived of the services, society and support of her father, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO.

90. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR THE ELEVENTH CAUSE OF ACTION ON BEHALF OF L [REDACTED] L [REDACTED]
D [REDACTED] N [REDACTED] INFANT UNDER 14 YEARS OLD (LOSS OF SERVICES)

91. The above paragraphs are herein incorporated by reference.

92. At all times herein after mentioned, L [REDACTED] L [REDACTED] D [REDACTED] N [REDACTED], was the DAUGHTER of the decedent, of ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, and was entitled to his services, society, comfort and affection.

93. As a result of defendants' negligence, assault and battery, negligent training, hiring and retention, and violation of the decedent's constitutional rights resulting in the death of ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, L [REDACTED] L [REDACTED] D [REDACTED] N [REDACTED], has been deprived of the services, society and support of her father, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO.

94. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR THE TWELFTH CAUSE OF ACTION ON BEHALF OF E [REDACTED] D [REDACTED]
D [REDACTED] V [REDACTED] INFANT UNDER 14 YEARS OLD (LOSS OF GUIDANCE)

95. The above paragraphs are herein incorporated by reference.

96. At all times hereinafter mentioned, E [REDACTED] D [REDACTED] D [REDACTED] V [REDACTED], was the infant child of the decedent, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, who provided support, maintenance, parental nurture and care, and the physical, moral, and intellectual training and guidance prior to this occurrence.

97. As a result of the defendants' negligence, and violation of the decedent's constitutional rights, E [REDACTED] D [REDACTED] D [REDACTED] V [REDACTED], has been deprived of the support, maintenance, parental nurture and care, the physical, moral, and intellectual training and guidance of his father forever.

98. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR THE THIRTEENTH CAUSE OF ACTION ON BEHALF OF E [REDACTED]
M [REDACTED] D [REDACTED] V [REDACTED] INFANT UNDER 14 YEARS OLD (LOSS OF GUIDANCE)

99. The above paragraphs are herein incorporated by reference.

100. At all times hereinafter mentioned, E [REDACTED] M [REDACTED] D [REDACTED] V [REDACTED],

was the infant child of the decedent, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, who provided support, maintenance, parental nurture and care, and the physical, moral, and intellectual training and guidance prior to this occurrence.

101. As a result of the defendants' negligence, and violation of the decedent's constitutional rights, E■■■■■ M■■■■■ D■■■■■ V■■■■■, has been deprived of the support, maintenance, parental nurture and care, the physical, moral, and intellectual training and guidance of her father forever.

102. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR THE FOURTEENTH CAUSE OF ACTION ON BEHALF OF L■■■■■
L■■ D■■■■■ N■■■■■ INFANT UNDER 14 YEARS OLD (LOSS OF GUIDANCE)

103. The above paragraphs are herein incorporated by reference.

104. At all times hereinafter mentioned, L■■■■■ L■■ D■■■■■ N■■■■■ was the infant child of the decedent, ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, who provided support, maintenance, parental nurture and care, and the physical, moral, and intellectual training and guidance prior to this occurrence.

105. As a result of the defendants' negligence, and violation of the decedent's constitutional rights, L■■■■■ A L■■ D■■■■■ N■■■■■, has been deprived of the support, maintenance, parental nurture and care, the physical, moral, and intellectual training and guidance of her father forever.

106. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts

WHEREFORE, Plaintiffs demand judgment against the Defendants on all causes of actions, request compensatory and punitive damages in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction and an award for reasonable attorney's fees, costs and disbursements of this action; and such other relief as this Court may deem just, fair

and proper under the circumstances.

Yours, etc.



Jonathan Roberts
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ATTORNEY'S VERIFICATION

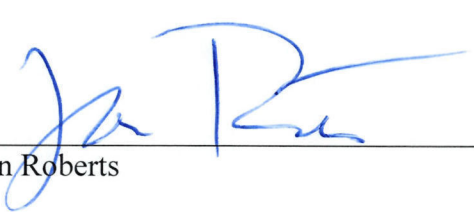
JONATHAN ROBERTS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at TALKIN, MUCCIGROSSO & ROBERTS, LLP, attorneys of record for GRETCHEN SOTO ORTIZ, as Administrator of the Estate of ERIC DANIEL DUPREY SOTO A/K/A ERIC D. DUPREY SOTO, Deceased, AND AS GUARDIAN OF THE PROPERTY FOR E [REDACTED] D [REDACTED] D [REDACTED] V [REDACTED] and E [REDACTED] M [REDACTED] D [REDACTED] V [REDACTED] INFANTS UNDER THE AGE OF 14 YEARS OLD and L [REDACTED] L [REDACTED] D [REDACTED] N [REDACTED] AN INFANT UNDER THE AGE OF 14 YEARS OLD BY HER MOTHER AND NATURAL GUARDIAN JAMYL NIEVES MELENDEZ.

I have read the annexed **SUMMONS & COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs do not presently reside in the county where I maintain my offices.

DATED: New York, New York
November 12, 2024



Jonathan Roberts